

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with
Sh. Lokender Singh Raghav, Standing Government Counsel for
the complainant -SFIO and Sh. Vishal Singh and Ms. Kajal
Soni, Legal Consultants

Accused Nos. **1** to **70** companies, represented through accused
Rahul Modi (123), who is in custody

Accused Nos. **71** to **78** companies, represented through
accused Sidharth Chauhan (**135**), who is on interim.

Accused No.**79** company, represented through accused
Vivek Hari Vyas (**115**) who is on interim bail.

Accused Nos. **80** company, represented through accused
Naveen Kumar (**139**).

Accused Nos. **81** and **82** companies, represented through
accused Surender Singh(140) who is on interim bail.

None for accused No.83 company

Accused Nos. **84** company, represented through accused
Abhya K. Shah(**127**)(sought exemption today), represented
by Sh.Nitin Desodia, Advocate

Accused Nos. **85** company, represented through accused
Jainam Rathod (No.130).

Accused Nos. **86**, **87** and **88** companies, represented
through accused Ravi Tak (No. **166**)

Accused No. **89** company, represented through accused
Raj Kumar Bohra (171).

Accused Nos. **90** to **93** companies, represented through
accused Vivek Hari Vyas (**115**)who is on interim bail

Accused Nos. **94** to **97** companies, represented through
Shri Rahul, AR, in person

Accused Nos. **98** company, represented through Shri
Naresh Kumar, AR, in person

Accused Nos. **99** and **100** companies, represented through
accused Raj Kumar Modi (**176**) who is on interim bail

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Accused No. **101** Alba Ploymers Ltd. Represented through AR in person

Accused No. **102** company, represented through Shri Deepak, AR, in person

Accused No. **103** company, represented through Shri Dharmender, AR, in person

Accused No. **104** company, represented through Shri Vicky, AR, in person

Accused No. **105** company, represented through Shri Anup, AR, in person

Accused No. **106** company, represented through Shri Kashi Nath Jha, AR, in person

Accused No. **107** company, represented through Shri Fateh Singh, AR, in person

Accused No. **108** company, represented through Shri Jinsan, AR, in person

Accused No. **109** company, represented through Shri Vikas Paul, AR, in person

Accused Nos. **110** company, represented through Shri Raju Yadav, AR in person

Accused No. **111** company, represented through Shri Ritik Sharma, AR (sought exemption today)

Accused No. **112** company, represented through Shri Devender Kumar, AR(sought exemption today)

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi, No. **143**/Sudhir Punia and No. **177**/Rajiv Kumar Rana in custody, produced by the concerned jail authorities.

Accused No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No. **126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No. **134**/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but in custody in some other case(s).

Accused Vivek Harivasi (**115**), Surender Singh (**140**), Vijay Shukla (**149**), Raj Kumar Modi (**176**), on interim bail.

Accused Joydeep Das Gupta(**No.144**), Lovekush Sharma(**No.145**), Avanish Kumar Tyagi(**No.148**) and Poonam Madan(**No.151**) on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

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Accused Bharat Kumar Mardia (**No.154**), exempted permanently, but represented by Sh. Peeyush Jain, Advocate.

Accused Rajeev Verma(No.167), Sushil Maloo(No.168) and Rajendra Singh Bhandari(No.169) on bail, but granted permanent exemption) vide order dated 04.09.2019.

Accused Paramvir Singh Sangwan(No.174) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Accused Icchhita Dunderwal (180) and Neha Kataria (181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodhya, Advocate

Accused Praveen Maheshwarei(No.156) and Rajeev Maheshwarie(No.157) on bail, but exempted from personal appearance till further order vide order 31.01.2020, represented through Shri Piyush Jain, Advocate.

Accused Leena Harivvysi (**146**), Ajit Singh Rathore (**150**), **Ramlal Arya (158)**, Hemant Kumar Jain (**159**), Parveen Kumar (**161**), Raj Kumar Bohra (**171**), Damyanti Bhandari (**179**), accused **182 to 186** exempted till further orders vide order dated 03.05.2024

Accused Paras Bolia (**121**), Abhay K. Shah (No. **127**), Manish Chaudhary(N0.128), Prakash Chandra Purohit(No.133), Akshat Singh (No. **136**), Gurbir Singh Sandhu(No.138), Nazima Khan (**152**) Shabbir Khan (**153**), Shiv Raj Sharma (No. **160**), Indu Tak(No. 164), Shyam Bihari Gupta(No.165), Sudhir Mehta(N0.170), **and** Mahesh Kumar Tak (No. **187**), on bail (**exemption applications filed today**)

Accused No.173 Peeyush Aggarwal on bail represented by Sh Prashant Yadav, Advocate

Accused Vinay Kumpawat (No. **119**) already declared proclaimed person vod 27.07.2022 and accused Shinder Pal Singh (No. **137**) already declared proclaimed person vod 03.05.2024

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Proceedings qua accused Mahendra Kumar Tak (155) and Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Shri Prashant Yadav, Advocate filed fresh power of attorney on behalf of accused Akshat Singh(No.136) and accused Peeyush Aggarwal(No.173). Shri Sanjay Gupta, Advocate has filed power of attorney on behalf of accused No.150, 158, 182, 183 and 185.

Death report of accused No.122/Virender Modi has not been filed. The prosecuting agency is directed to file death report of accused No.122/Virender Modi on or before **03.09.2024**, after obtaining the same through SHO concerned.

Accused No. **113**/Mukesh Modi, No. **114**/Rahul Virendra Modi, No.**143**/Sudhir Punia and No.**177**/Rajiv Kumar Rana who are in custody in this case and accused No. **120**/Vibhav Lodha, No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh, No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.**134**/Vivek Purohit, No. **142**/Bharat Das Vaishnav, who are on bail in this case, but in custody in some other case, be produced before the Court on 03.09.2024 through video confrencing and in case any of the accused comes out on bail then he is directed to come present in person on the adjourned date.

Accused No. 115 Vivek Harivyas, No.116 Nitin Rathore, No. 117 Priyanka Modi, No.118 Jitender Vyas, No. 129 Deepak Shrimali, NO.130 Jainam Rathod, No. 139 Naveen Kumar, No. 140 Surender Singh, No.14 Aditya Sarda, No. 147 Vimal Sanwarmal Sharma, accused No. 149 Vijay Shukla, No. 162 Naveen Choudhary, No.163 Megha Chauhan, No. 166 Ravi Tak, No. 172 Saurabh Tak, No. 176 Raj Kumar Modi, No. 178 Mahesh Dutt Sharma, who are on bail/interim bail, appeared in person.

Separate applications seeking exemption from personal appearance filed on behalf of acused Paras Bolia (No. **121**), Abhay K. Shah (No. **127**), Manish Chaudhary(N0.128), Prakash Chandra Purohit(No.133), Akshat Singh (No. **136**), Gurbir Singh Sandhu(No.138), Nazima Khan (**152**) Shabbir Khan (**153**), Shiv Raj Sharma (No. **160**), Indu Tak(No. 164),

Shyam Bihari Gupta(No.165), Sudhir Mehta(N0.170), **and** Mahesh Kumar Tak (No. **187**). The applications are supported by affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

Accused companies i.e. accused No.111 being represented through AR Ritik Sharma and accused No.112 being represented through AR Devender Kumar, have sought exemptions on behalf of authorized representatives of the said companies. For the reasons mentioned in the applications, the said applications stand allowed for today only.

Accused No.133 Prakash Chander Purohit has moved an application to exempt him from personal appearance till further orders. Let reply to the said application be filed by the complainant/SFIO on or before the adjourned date.

So far as accused Neha Ghemawat (No. **124**) and Meenakshi Modi (No. **132**) are concerned, in terms of undertaking given by their counsel on dated 09.02.2024, they were to appear today, but an application under Section 88 Cr.P.C/Section 91 BNSS, 2023 has been moved on behalf of accused No.124 and accused No.132. Copies supplied to learned Prosecutor for the complainant, who seeks time to file reply thereto. Reply, if any, be filed on the adjourned date.

It is made clear that in case there is any restraint order passed by any Hon'ble Court qua presence of both these accused, then accused/their counsel are under obligation to bring on record certified copies of said orders on the adjourned date, failing which both accused have to appear in person before the Court.

So far as accused Siddharth Chauhan (No. **135**) is concerned, PO proceedings qua him stand adjourned for awaiting further orders of Hon'ble High Court, as learned Prosecutor for the SFIO/complainant submitted that this accused had approached Hon'ble High Court wherein

some interim order was passed but latest status of the same is not made available. Accordingly said accused is also directed to bring on record certified copy of order passed in his favour by Hon'ble High Court, failing which this Court has to proceed further as per law.

Accused No.117 Priyanaka Modi has also moved an application seeking permanent exemption from personal appearance. Copy given. Reply, if any, be filed on the adjourned date.

All accused, who have earlier moved applications to grant pardon, are also directed to come present in person so that further proceedings as per law be carried out.

Date of order: 29.07.2024

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125